

[illegible]

Solicitation/Contract Form Continuation

Instrument Name: Digital Marketing

Product Service Code : R701

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	The contractor shall provide a comprehensive marketing package to the California Army National Guard (CAARNG) for recruitment and retention goals. The contractor shall provide services to generate qualified recruitment leads, offer a customized lead capture and nurturing solution, and support the Recruiting and Retention Battalion (RRB) leadership, recruiters, and marketing staff. Pricing Arrangement: Firm Fixed Price Product Service Code: R701 North American Industry Classification System (NAICS): 541810 Pricing Arrangement: Firm Fixed Price	12	Months		

Continuation of Description

Requirements

The contractor shall provide a comprehensive marketing package to the California Army National Guard (CAARNG) for recruitment and retention goals. The contractor shall provide services to generate qualified recruitment leads, offer a customized lead capture and nurturing solution, and support the Recruiting and Retention Battalion (RRB) leadership, recruiters, and marketing staff.

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See PWS DoDAAC: W919U5 CountryCode: USA W90E CALIFORNIA REC & RET 70 CORPORATION YARD ROAD, ROSEVILLE CA 95678-1564 ROSEVILLE, CA 95678-1564 UNITED STATES Nicholas Barragan
------	---

Continuation of Deliveries or Performance

0001	Quantity 12 Months Address and POC Place of Performance DoDAAC: W919U5 CountryCode: USA W90E CALIFORNIA REC & RET 70 CORPORATION YARD ROAD, ROSEVILLE CA 95678-1564 ROSEVILLE, CA 95678-1564 UNITED STATES Nicholas Barragan Period of Performance From 01 Jul 2026 To 30 Jun 2027
------	---

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.219-8	Utilization of Small Business	2026-02		

Concerns. (Deviation 2026-
O0038)

52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026- O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026- O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026- O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026- O0038)	2026-02
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026- O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-	2026-02

O0038)

52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11
252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective	Alternate	Variation
--------	-------	-----------	-----------	-----------

		Date	Deviation	Effective Date
52.219-14	Limitations on Subcontracting. (Deviation 2026-O0038)	2026-02		

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[X] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05
-----------	---	---------

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees

expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF

Data to be entered in WAWF

Pay Official DoDAAC	HQ0670
Issue By DoDAAC	W912LA
Admin DoDAAC	W912LA
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	W919U5
Service Acceptor (DoDAAC)	W919U5
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

COR: Nicholas Barragan, nicholas.t.barragan.mil@army.mil; KO: Kaipo Kim, kaipo.h.kim.civ@army.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		

252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01
--------------	--	---------

List of Contract Documents, Exhibits, or Attachments

Price Matrix

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Digital Marketing_Performance Work Statement	Performance Work Statement		01 Apr 2026		13	Attachment	No
0002	SCA Rates Sacramento	Wage Determination		03 Dec 2025		10	Attachment	No
0003	Price Matrix	Price Matrix		30 Apr 2026		1	Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding	2022-05		

Business Operations with the
Maduro Regime.

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
--------------	--	---------

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	2019-12		

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05
--------------	---	---------

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has

represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM TO 52.212-1, INSTRUCTIONS TO OFFERORS - COMMERCIAL PRODCUTS AND COMMERCIAL SERVICES

GENERAL INSTRUCTIONS

This section provides general guidance as well as specific instructions on the format and content of an offeror's submissions. The offeror's submission must include all data and information requested and must be submitted in accordance with these instructions. Offers shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. Offerors shall assume that the Government has no prior knowledge of their facilities and experience and will base its evaluation on the information presented in the offeror's submission. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired.

The Offeror shall prepare its response as follows:

Volume	Name/Contents	Page Limit
I	Technical Information	20
II	Past Performance	10
III	Price & Solicitation	No Limit

Each volume shall contain a cover page that includes the following information: Company Name, Unique Entity ID (UEID), CAGE Code, Point of Contact for individual authorized to sign on behalf of the company, their email address, and phone number. Page limitations shall be treated as a

maximum. If exceeded, the excess pages will not be read or considered in the evaluation of the quote. Each page shall be counted except the following: cover page, table of contents, tabs, and glossaries.

VOLUME I: Technical Information

The Offeror shall ensure all technical performance information shall be addressed ONLY in Volume 1. The Technical quote shall address how the Offeror intends to comply with the technical and management performance requirements contained within the PWS. The narrative shall at a minimum, address the following:

Sub-Factor 1: Organizational & Management Plan. The Offeror shall provide an organizational chart to be used for the duration of this contract. The organizational chart shall identify positions, positional hierarchy, and lines of authority / information / communication flows. Supporting documentation shall be submitted with the organizational chart to describe minimum qualifications for each position, and what major tasks each position is tasked with. The Offeror shall successfully demonstrate how the organizational structure will ensure full compliance with the contract terms and conditions.

Sub-Factor 2: Market Research, Marketing Strategy & GIS Analytic Studies. The Offeror shall describe its methodologies and demonstrate the workflows and processes and timelines that will be used to perform all services listed at PWS 5.5 and PWS 5.6. Describe your methodologies for conducting various analyses, the data sources you will use, and the types of actionable insights you will provide to the CAANRG.

Sub-Factor 3: Recruiting Location Management. The Offeror shall describe its methodologies and demonstrate the workflows and processes and timelines that will be used to perform all services listed at PWS 5.7. Detail the strategy for optimizing the 80 recruiting location listings, including the approach to Search Engine Optimization, reputation management, and review solicitation campaigns. Specify the tools and platforms you will use.

Sub-Factor 4: Digital Asset Management System. The Offeror shall describe the proposed DAM system, its key features, and the plan for its implementation, including how you will ensure user adoption and provide training to ARNG staff. The Offeror shall describe its methodologies and demonstrate the workflows and processes and timelines that will be used to perform all services listed at PWS 5.8

Sub-Factor 5: Media Plan Development & Execution. The Offeror shall describe its methodologies and demonstrate the workflows and processes and timelines that will be used to perform all services listed at PWS 5.9. Outline the process for developing the media strategy and plan, the approach to media buying, and how you will measure and report on the effectiveness of the campaigns beyond the specified KPIs.

VOLUME II: Past Performance

Offerors shall submit 3-6 relevant and recent references of same/similar services previously performed. For each reference, the Offeror shall provide the following information:

- the Contract Number (if applicable),
- a brief description of services provided to include quantifiable results and achievements, such as lead generation increases, ROI improvements, or other relevant metrics.
- Total value of the contract/agreement.
- Period of performance (dates)
- Name of the entity that issued the contract,
- points of contact to include the name, title, phone number and email address of each individual provided

VOLUME III: Price & Solicitation

The Offeror shall include the following in this volume: This volume shall contain the following (1) Completed Price Matrix (2) Signed solicitation and any amendments (3) Completed Representations and Certifications as contained in the solicitation. Alternatively, the Offeror may submit a statement affirming all Representations and Certifications are complete and accurate as of the day of quote submission.

Offerors shall submit the completed Price Matrix - ensuring ALL yellow highlighted fields are completed. Prices quoted shall be in U.S. Dollars. Prices quoted shall be consistent with the technical approach as contained in Volume I. Quoted prices shall be fully burdened and rounded to the nearest penny. Offerors are cautioned to not revise the Price Matrix in any way - other than completing the yellow-highlighted fields and renaming the file. Deviating from these instructions may result in the quote not being considered for award.

QUOTE SUBMISSION.

Offers are due no later than the date/time located on Page 1, Box 8 of the SF1449. Time given in Box 8 is Pacific Time. All submissions shall be e-mailed to the Contracting Officer (KO), Kaipo Kim at kaipo.h.kim.civ@army.mil no later than the date/time located on Page 1, Box 8 of the SF 1449. The Offeror is responsible for ensuring all offers are received by the date/time located on the solicitation (as amended, if applicable). No verbal, faxed, or hand-delivered offers responses will be accepted. Only emailed quote submissions will be accepted. All responsible sources may submit a response which, if timely received, must be considered by the agency.

NATIONAL GUARD AGENCY PROTEST PROGRAM.

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

United States Property and Fiscal Office for California, Purchasing and Contracting Division

ATTN: Kaipo Kim

10601 Bear Hollow Dr.

Rancho Cordova, California 95670

Email: kaipo.h.kim.civ@army.mil

To file a protest under the NG Agency Protest Program, the protest must request resolution under that program and be sent to the address below:

National Guard Bureau

Office of the Director of Acquisitions

ATTN: NGB-AQ-O

111 S. George Mason Dr.

Arlington, VA 22204

Email: ng.ncr.ngb-arng.mbx.ngb-task-order-ombudsman@mail.mil

NG Public-facing, general Protest information is found at:

<https://www.nationalguard.mil/Leadership/Joint-Staff/Special-Staff/Director-of-Acquisitions/>

Directorate of Acquisitions information for the contracting enterprise is found at

<https://gko.portal.ng.mil/ngb/STAFF/D01/D01/OI/Protests%20and%20Complaints/Forms>

[/AllItems.aspx](#)

The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

*** END OF NARRATIVE ***

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Technical

Past Performance

Price & Solicitation

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

ADDENDUM TO EVALUATION - COMMERCIAL PRODCUTS AND COMMERCIAL SERVICES

Basis for Contract Award - This solicitation is conducted in accordance with Revolutionary FAR Overhaul Federal Acquisition Regulations (RFO FAR) Part 12, Acquisition of Commercial Products and Commercial Services, as supplemented by the RFO Defense Federal Acquisition Regulation Supplement (RFO DFARS), and the RFO Army Federal Acquisition Regulation Supplement (RFO AFARS). The Government (USG) intends to award a single contract in response to this solicitation. The USG will utilize trade-off procedures as detailed below to award to the solicitation that conforms to the solicitation and will be most advantageous. The USG intends to award without discussions but reserves the right to do so, if necessary. Offerors are cautioned to ensure strict adherence to the Instructions to Offerors as contained in 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services and its Addendum as contained in this solicitation.

Incomplete responses may be considered non-responsive to the solicitation and may not be evaluated for award.

For the purposes of this solicitation, non-responsiveness refers to (but is not limited to): failure to follow submission procedures and format (as contained/described herein), and failure to provide a Unit Price and Extended Total/Amount for each Contract Line Item as required by this solicitation. The offer shall be compliant with the requirements as stated in the PWS. Non-conformance with the instructions provided may result in an unfavorable evaluation.

EVALUATION PROCESS

The USG will evaluate the following factors to determine contract award:

Factor 1: Technical

Sub-Factor 1: Organizational & Management Plan

Sub-Factor 2: Market Research, Marketing Strategy & GIS Analytic Studies

Sub-Factor 3: Recruiting Location Management

Sub-Factor 4: Digital Asset Management System

Sub-Factor 5: Media Plan Development & Execution

Factor 2: Past Performance

Factor 3: Price & Solicitation

Rationale for Award.

The USG is placing an emphasis on a technical solution with by an Offeror with proven past performance. The USG will award to the highest technically rated quote with satisfactory or higher past performance with a fair and reasonable price as allowed by RFO FAR 12.201-1(d). The relative order of importance: Technical rating, past performance, followed by price.

Volume I / Factor 1: Technical Volume.

Sub-Factor 1: Organizational & Management Plan. The USG desires to partner with an organization that values and promotes quality, speed, and innovation. The organization chart and accompanying information will be examined to determine if the Offeror has proposed an organization of sufficient size, experience and organization to complete the requirements of the PWS. Particular attention will be paid to lines of authority, and information / task / communication flows. The evaluators will examine the information submitted to ensure the Offeror can be responsive, possesses the necessary experience and skill sets to accomplish the PWS without delay.

Sub-Factor 2: Market Research, Marketing Strategy & GIS Analytic Studies. The evaluators will evaluate the methodologies, workflows, processes and timelines used to perform the PWS requirements to evaluate technical expertise, innovation and ability to complete the tasks of the PWS.

Sub-Factor 3: Recruiting Location Management. The evaluators will evaluate the methodologies, workflows, processes and timelines used to perform the PWS requirements to evaluate technical expertise, innovation and ability to complete the tasks of the PWS. (Examples: Screen shot of Google Business Dashboard to verify numbers, sources used like Google, Facebook, Bing, Foursquare, MapQuest, Waze, Apple Maps, Uber, Lyft, and Yellow Pages. What is the plan and how will the approach drive an increase with recruitment.)

Sub-Factor 4: Digital Asset Management System. The evaluators will evaluate the methodologies, workflows, processes and timelines used to perform the PWS requirements to evaluate technical expertise, innovation and ability to complete the tasks of the PWS. (Examples: What are the tools and processes for updating/tailoring data on dashboards, the process of developing managed templates, retrieving and requesting creations for campaign execution, and providing access to systems.)

Sub-Factor 5: Media Plan Development & Execution. The evaluators will evaluate the methodologies, workflows, processes and timelines used to perform the PWS requirements to evaluate technical expertise, innovation and ability to complete the tasks of the PWS.

To receive an overall Acceptable or higher rating for the technical factor, all subfactors must be rated no lower than Acceptable. The evaluators will evaluate each sub-factor IAW with the scale below and roll the sub-factor ratings into an Overall Technical factor rating.

The following method will be used to evaluate Technical Information:

Technical Ratings & Definitions	
Adjectival Rating	Description
Outstanding	The quote demonstrates an exceptional approach and understanding of the requirements.
Acceptable	Quote demonstrates an adequate approach and understanding of the requirements.
Unacceptable	Quote has not demonstrated an adequate approach and/or understanding of the requirements.

Volume II / Factor 2: Past Performance.

The USG will evaluate each reference for recency and relevancy. For the purposes of this solicitation, Recency is defined as demonstrated experience (active or completed efforts) performed within the past three years from the date the solicitation is issued. Relevancy is defined as demonstrated experience that is similar in scope and magnitude of this effort. References / Sources will either be found to be Recent or Not Recent and Relevant / Not Relevant. Only references / sources that are found to be recent and relevant will be evaluated for confidence levels. The USG reserves the right to use any resource available to the Contracting Officer to evaluate Past Performance, to include government databases and personal knowledge of the acquisition workforce. The following Rating Method will be used to evaluate Past Performance:

Past Performance Ratings & Definitions	
Adjectival Rating	Description

Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Volume III / Factor 3: Price.

The USG will verify unit prices and extended (CLIN) pricing is accurate as quoted. Upon verification of CLIN prices, the USG will add all CLINs to arrive at a Total Evaluated Price.

The USG expects adequate competition to assist in determining a fair and reasonable price. However, if adequate competition does not materialize, the Contracting Officer may require the submission of Other than Certified Cost or Pricing Data to support the quote.

Contract award may only be made to responsible parties IAW RFO FAR 9.103. As part of the Responsibility determination, the Contracting Officer will consider supplier risk using the Supplier Performance Risk System IAW RFO DFARS 204.7602.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is

provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)